

U.S. SOCCER MODEL PROHIBITED CONDUCT POLICY

A. APPLICATION

This Policy applies to:

- Members or license holders of [ORGANIZATION MEMBER],
- Employees and board members of [ORGANIZATION MEMBER] and the employees and board members of [ORGANIZATION MEMBER] members,
- Anyone with in [ORGANIZATION MEMBER] governance or disciplinary jurisdiction, and

All definitions in this policy are taken from the SafeSport Code for the U.S. Olympic and Paralympic Movement the (“SafeSport Code”), as may be amended from time to time. In the event of any conflict between this Policy and the SafeSport Code, the SafeSport Code will govern. The most recent SafeSport Code is always available at www.safesport.org.

B. PROHIBITED CONDUCT

1. Harassment

Harassment consists of unwelcome conduct, whether verbal, physical or visual, that is based upon a person’s protected status. [ORGANIZATION MEMBER] will not tolerate harassing conduct that affects tangible job benefits, that unreasonably interferes with an individual’s work performance, or safety, or that creates an intimidating, hostile, or offensive working environment.

Among the types of conduct prohibited by this policy are epithets, slurs, negative stereotyping or intimidating acts based on an individual's protected status and the circulation or posting of written or graphic materials that show hostility toward an individual because of his or her protected status.

Prohibited conduct can also include jokes, kidding, or teasing about another person’s protected status. While harassing conduct is unlawful only if it affects tangible job benefits and/or interferes unreasonably with work performance and creates an abusive or hostile work environment, this Policy forbids harassing conduct even when it does not rise to the level of a violation of law.

2. Sexual Harassment

Sexual harassment deserves special mention. Unwelcome sexual advances, requests for sexual favors, and other verbal, written, or physical conduct of a sexual nature constitute sexual harassment when:

- submission to such conduct is either explicitly or implicitly a term or condition of the individual’s employment,
- submission to or rejection of such conduct by an individual serves as the basis for an employment decision affecting that individual, or

- such conduct has the purpose or effect of unreasonably interfering with an individual's work performance and creating an intimidating, hostile, or offensive working environment.

Sexual harassment may involve individuals of the same or different gender. It may also occur between individuals of any employment status.

Examples of conduct which may constitute sexual harassment and are prohibited by this Policy include, but are not limited to:

- unnecessary touching, patting, hugging, pinching, or brushing against a person's body,
- staring, ogling, leering, or whistling at a person,
- continued or repeated verbal abuse of a sexual nature,
- sexually explicit statements, sexual flirtations, advances, propositions, subtle pressure for sexual activity, comments, questions, jokes, or anecdotes,
- graphic or degrading comments about a person's clothing, body or sexual activity,
- sexually suggestive objects, cartoons, posters, calendars, or pictures in the workplace,
- suggestive or obscene letters, notes or invitations,
- harassing use of electronic mail, electronic or instant messaging, or telephone communication systems, or
- other physical or verbal conduct of a sexual nature.

3. Racial, Religious, or National Origin Harassment

Racial, religious, or national origin harassment deserves special mention as well, and is expressly prohibited by [ORGANIZATION MEMBER]. Racial, religious, or national origin harassment includes any verbal, written, or physical act in which race, religion, or national origin is used or implied in a manner which would make a reasonable person uncomfortable in the work environment or which would interfere with the person's ability to perform the job. Examples of race, religious or national origin harassment may include, but are not limited to:

- jokes, which include reference to race, religion, or national origin,
- the display or use of objects or pictures which adversely reflect on a person's race, religion, or national origin, or
- use of pejorative or demeaning language regarding a person's race, religion, or national origin.

4. Child Abuse, Including Child Sexual Abuse

Child abuse is prohibited. Child abuse is defined as the physical or mental injury, sexual abuse or exploitation, or negligent treatment of a child. Specifically, child sexual abuse includes sexual contact with a child that is accomplished by deception, manipulation, force or threat of force, regardless of the age of the participants, and all sexual interactions between an adult and a child, regardless of whether there is deception, or whether the child understands the sexual nature of the activity.

5. Sexual Misconduct and Power Imbalance

Sexual misconduct is prohibited. Sexual misconduct includes:

- Sexual Harassment as defined in Section B.2. of this policy,
- non-consensual touching of a sexual nature, however slight,
- watching, recording, or disseminating images of private sexual activity without the consent of all parties, and
- engaging in solicitation of prostitution or prostituting or trafficking another person.

Any sexual interaction between an athlete and an individual where there is a power imbalance is prohibited. A power imbalance exists when one person has evaluative, direct, or indirect authority over another. Such relationships involve an imbalance of power and are likely to impair judgment or be exploitative. This section does not apply to a pre-existing relationship between two spouses or life partners.

6. Emotional Misconduct

Emotional misconduct in all forms is prohibited. Emotional misconduct is a pattern of deliberate, non-contact behavior that has the potential to cause emotional or psychological harm to another person. Non-contact behaviors include verbal acts, physical acts, or acts that deny attention or support; or any act or conduct described as emotional abuse or misconduct under federal or state law (e.g., child abuse, child neglect). Emotional misconduct does not include professionally-accepted coaching methods of skill enhancement, physical conditioning, team building, appropriate discipline or improving athletic performance.

7. Physical Misconduct

Physical misconduct in all forms is prohibited. Physical misconduct is defined as contact or non-contact conduct that results in, or reasonably threatens to, cause physical harm to another person; or any act or conduct described as physical abuse or misconduct under federal or state law (e.g., child abuse, child neglect, assault). Physical misconduct does not include professionally-accepted coaching methods of skill enhancement, physical conditioning, team building, appropriate discipline or improving athletic performance. For example, hitting and punching are well-regulated forms of contact in combat sports but have no place in soccer.

8. Bullying

Intentional, persistent, and repeated pattern of committing or willfully tolerating physical and non-physical behaviors that are intended, or have the reasonable potential, to cause fear, humiliation, or physical harm to socially exclude, diminish or isolate the targeted athlete(s), as a condition of membership are prohibited. Bullying does not include group or team behaviors that (a) are meant to establish normative team behaviors, or (b) promote team cohesion.

9. Hazing

Coercing, requiring, forcing, or willfully tolerating any humiliating, unwelcome or dangerous activity that serves as a condition for (a) joining a group or (b) being socially accepted by a group's members are prohibited. Purported consent by the person subject to hazing is not a defense, regardless of the person's willingness to cooperate or participate. Hazing does not

include group or team activities that (a) are meant to establish normative team behaviors or (b) promote team cohesion.

10. Retaliation

Retaliation against a person for reporting prohibited conduct or for participating in an investigation of a report of misconduct under this policy, is prohibited. Retaliation means any adverse action, or threat to take an adverse action including, but not limited to threatening, intimidating, harassing, coercing, or any other action or conduct with the potential effect of dissuading a reasonable person from reporting under this policy or participating in the investigation of a report.

11. Aiding and Abetting

Aiding and abetting is prohibited. Aiding and abetting is defined as:

- knowingly assisting, in any way, the commission of prohibited conduct under this policy or
- allowing any person who has been suspended or ruled ineligible by the U.S. Center for SafeSport to participate, in any capacity, in [ORGANIZATION MEMBER’S] programs.

12. Abuse of Process

Abuse of process is prohibited. Abuse of process is defined as interfering with the U.S. Center for SafeSport’s (“the Center’s”) process by:

- falsifying, misrepresenting, concealing, or destroying information,
- attempting to discourage a person’s participation in the Center’s process,
- publicly disclosing a claimant (or victim’s) information,
- failing to comply with a temporary measure or other sanction,
- distributing or publicizing materials created or produced by the Center except as expressly permitted by the Center, or
- having another person complete any Center required training for them.

13. Misconduct Related to Reporting

Misconduct related to reporting is prohibited. Misconduct related to reporting is defined as:

- Failing to report allegations to the Center or to law enforcement under Section B of this Policy, or
- Filing a knowingly false allegation that someone engaged in prohibited conduct.

B. REPORTING OBLIGATIONS

Everyone covered by this policy as set forth under Section A is required to report prohibited conduct. This section shall not be interpreted to require a victim of abuse to make a report.

1. Reporting to Law Enforcement and the U.S. Center for SafeSport

Any allegation of child abuse, as defined by Section 4 herein, including child sexual abuse, must be reported within 24 hours to:

- Local law enforcement, any other agency as required by state law, and
- The U.S. Center for SafeSport, at <https://uscenterforsafesport.org/report-a-concern/> or 833-587-7233.

2. Reporting to the U.S. Center for SafeSport

The following allegations must be reported within 24 hours to the U.S. Center for SafeSport, at <https://uscenterforsafesport.org/report-a-concern/> or 833-587-7233:

- Sexual misconduct as defined by Section B.5. herein,
- Retaliation as defined by Section B.10. herein,
- Aiding and abetting as defined by Section B.11. herein, when it relates to the Center's process, and
- Abuse of process as defined by Section B.12. herein, when it relates to the Center's process.

3. Reporting to [ORGANIZATION MEMBER]

All other allegations of conduct prohibited by this policy or the Code, as well as violations of [ORGANIZATION MEMBER'S] Minor Athlete Abuse Prevention Policy ("MAAPP") must be reported to [ORGANIZATION MEMBER] as soon as possible by [INSERT REPORTING PROCESS FOR ORGANIZATION MEMBER].

C. ENFORCEMENT AND RESOLUTION

Any allegation of prohibited conduct reported under Section B.3. herein shall be addressed by [ORGANIZATION MEMBER], subject to a grievance process sent forth in [INSERT ORGANIZATION MEMBER BYLAW, POLICY, OR RULE REFERENCE] that is materially free of bias and conflicts of interest, and which includes the opportunity for review by a disinterested individual or group and a right to appeal a final decision subject to the terms set forth in U.S. Soccer Bylaw 704.